

		and sold the firm many years later. Further, Petitioner's moving and reply papers fail to articulate any personal stake that Petitioner has in the motion to disqualify or any legally cognizable interest of Petitioner's that would be harmed by Bezaire & Leathers LLP's continued representation of Lou Ann Kelly and Michael Kelly. Lacking a personal stake in the motion to disqualify, Petitioner lacks standing even under the minority view recognized by <i>Moreci</i>. Even if he had standing, Petitioner has not established the existence of any conflict of interest warranting disqualification. Finally, the court notes that Lou Ann Kelly and Michael Kelly have yet to make an appearance in this case. Thus, Bezaire & Leathers is not, as of now, "attorney of record" for them. "A trial court's authority to disqualify an attorney derives from the power inherent in every court '[t]o control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto.'" (<i>People ex rel. Department of Corporations v. Speedee Oil Change Systems, Inc.</i> (1999) 20 Cal.4th 1135, 1145, emphasis added; internal citations omitted.) The court cannot control an attorney's representation of clients outside of litigation. For the foregoing reasons, the motion to disqualify is DENIED.
		TENTATIVE RULING Case: Calendar No.: Date: _____
		[Motion Type]
01496276	Schasker – Trust	TENTATIVE RULING Case: Schasker – Trust 01496276

Calendar No.: 5

Date: 05/27/2026

DEMURRER (ROA 21)

Respondent Dawn Passaro ("Respondent") demurrers to the Petition for Instructions (ROA 2) filed by Petitioner Kurt Schasker ("Petitioner") on 7/11/25 on the ground that it is barred by the 120-day statute of limitations to contest a trust pursuant to Probate Code section 16061.8.

Respondent specifically demurrers to the Petition filed on 7/11/25. An Amended Petition was 8/14/25 (ROA 1). The filing and service of an amended petition would render the demurrer moot. (*JKC3H8 v. Colton* (2013) 221 Cal.4th 468, 477.) It is unclear from the court's records, however, whether the Amended Petition was served on Respondent. Petitioner filed a Notice of Hearing on 9/3/25 (ROA 11), but it does not specify whether the original or amended petition was served with the Notice of Hearing.

Assuming arguendo that the demurrer is not moot, it must still be overruled.

A demurrer can be used only to challenge defects that appear within the "four corners" of the pleading – which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

Respondent has requested that the court take judicial notice of the Trust, three amendments to the Trust, and the Notification by Trustee. However, none of these documents are court records, nor are they otherwise matters of which the court can take judicial notice as set forth in Evidence Code section 451-452. Thus, Petitioner's request for judicial notice must be **denied**.

The initial Petition (ROA 2) alleges that the trustee never gave notice. The Amended Petition (ROA 10) alleges that the trustee gave notice in June 2023. In ruling on a demurrer, all material facts properly pleaded must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.)

Since there is nothing within the four corners of the petition that demonstrates it is time-barred by the 120-day statute of limitations, the demurrer must be **overruled**.

Counsel for Respondent is ordered to serve notice of ruling.